



THE

KENYA DATA PROTECTION LAW

CASE DIGEST

A Systematic Compilation of Reported Kenyan Data Protection Jurisprudence, 2020–2026
Fifty-Eight Judgments, Rulings and Determinations of the High Court, the Employment and Labour Relations Court, the Environment and Land Court and the Transport Licensing Appeals Board, Arranged by Data Protection Act Issue and Nature of Violation

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Editorial Preface

This digest reorganises a body of fifty-eight reported and unreported Kenyan decisions bearing on the Data Protection Act, 2019 (“the Act”) — drawn from the High Court, the Employment and Labour Relations Court, the Environment and Land Court and the Transport Licensing Appeals Board — by the substantive Data Protection Act issue or nature of violation each decision principally addresses, rather than by court, date or case-management number. The organising premise is that the same statutory questions recur across fora: a consent dispute over commercial use of a photograph raises materially the same analysis whether it is litigated as a civil suit, a constitutional petition or an appeal from the Office of the Data Protection Commissioner (the “ODPC”).

Parts I through VII group decisions by substantive subject matter: consent and the commercial exploitation of personal likeness; automated decision-making and data accuracy; access, discovery and institutional disclosure; lawful processing under statutory and law-enforcement mandates; digital identity and biometric data; the interaction of data protection with contract, evidence and civil procedure; and the ODPC's own enforcement procedure. Part VIII is deliberately isolated. It gathers every decision in the corpus in which the reviewing court disposed of the matter on a jurisdictional or exhaustion-doctrine threshold — typically upholding a preliminary objection that the complaint should first have proceeded before the ODPC under section 56 of the Act, or that the aggrieved party was confined to the statutory appeal under section 64 — without ever reaching the question whether the Act had, in fact, been violated. Separating these fifteen decisions from the substantive Parts serves a specific professional purpose: a practitioner assessing forum, admissibility or the viability of a direct constitutional petition needs to see the full run of jurisdictional authority together, undiluted by decisions that reached the merits.

Methodology and limitations. Each entry is drawn from the judgment, ruling or determination text, underlying case summary, or OCR extraction supplied in the source corpus; no fact, holding or citation has been supplied from outside that material. Where the supplied extraction did not preserve a coherent statement of the court's operative disposition or reasoning — a recurring limitation with certain PDF- and OCR-sourced judgments in the corpus — the entry says so explicitly, both in the body of the entry and by cross-reference to the Appendix, rather than supplying an invented holding. Garbled OCR artefacts in the underlying extraction (principally the systematic loss of the ‘ff’, ‘fi’ and ‘ffi’ ligatures, e.g. ‘oce’ for ‘office’, ‘eect’ for ‘effect’, ‘led’ for ‘filed’) have been silently corrected for readability where the intended word is unambiguous; no substantive wording has been altered.

Citation convention. Each entry is headed by its neutral citation as it appears in the source corpus. Four decisions in the corpus were supplied without a recoverable party-name heading; these are referenced descriptively by subject matter and citation, with a note explaining the gap. Six further judgments appeared twice in the source draft under materially overlapping citations; each has been consolidated into a single entry, drawing on the fuller of the two extractions.

How to use this digest. A reader assessing where a data-protection grievance should first be brought, or defending a claim on jurisdictional grounds, should read Part VIII together with the two contrary authorities noted in its introduction and reported in Part I. A reader assessing liability on the merits — consent, purpose limitation, automated decision-making, disclosure — should proceed directly to the relevant substantive Part. The Table of Cases and Table of Statutory and Constitutional Provisions at the front of this volume are designed as quick cross-reference tools for both purposes.

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Table of Cases

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Case Name	Citation	Part
<i>AK & another v Joyce Njoki Ngigi t/a Kora Spa</i>	[2023] KEHC 1126 (KLR)	Part VIII
<i>Aventus Technology Limited v N.</i>	[2025] KEHC 9218 (KLR)	Part I
<i>B. & 3 others v Alliance Leasing Limited</i>	[2026] KEELRC 979 (KLR)	Part VIII
<i>Ceres Tech Limited v Commissioner, Office of the Data Protection Commissioner</i>	[2024] KEHC 12833 (KLR)	Part VIII
<i>C. v Ethics & Anti-Corruption Commission; Makhanu (Interested Party)</i>	[2023] KEHC 3918 (KLR)	Part IV
<i>G. & 4 others v Waigwa</i>	[2022] KEHC 12253 (KLR)	Part IV
<i>G. & 2 others v Data Protection Commissioner & 2 others</i>	[2024] KEHC 15107 (KLR)	Part VIII
<i>G.M. & another v Microsoft East Africa Limited</i>	[2021] KEELRC 526 (KLR)	Part III
<i>Grain Industries Limited v M. & another</i>	[2024] KEHC 14003 (KLR)	Part I
<i>Jaggys (Kienyeji Chicken) v G.</i>	[2026] KEHC 6856 (KLR)	Part I
<i>Kabras Rugby Club v M. & another</i>	[2026] KEHC 7353 (KLR)	Part VII
<i>Kenya Union of Journalists v Kenya Broadcasting Corporation</i>	[2025] KEHC 17216 (KLR)	Part V
<i>K. v National Transport & Safety Authority</i>	[2023] KETLABT 663 (KLR)	Part II
<i>K. v Chuka University</i>	[2026] KEHC 3493 (KLR)	Part I
<i>K. & another v Mobi Changa Limited</i>	[2023] KEHC 25772 (KLR)	Part VIII
<i>K. v Credit Bank PLC</i>	[2024] KEELRC 2142 (KLR)	Part III
<i>K. v Beehive Media Limited; Capwel Industries Limited (Interested Party)</i>	[2023] KEHC 2684 (KLR)	Part VIII
<i>Maisha Ecosystem Digital-Identity Litigation (Review of Conservatory Orders)</i>	[2024] KEHC 10021 (KLR)	Part V
<i>M. v Julie Njuhi Muiruri (t/a Human Hair Center)</i>	[2024] KEHC 6970 (KLR)	Part I
<i>Metropolis Star Lab Kenya Ltd v K. & another</i>	[2025] KEHC 8211 (KLR)	Part I
<i>Mind Quest Limited v M. & 2 others</i>	[2025] KEHC 3891 (KLR)	Part I
<i>Moja Expressway Company v N.</i>	[2025] KEHC 16790 (KLR)	Part I
<i>Mulla Pride Limited v Office of the Data Protection Commissioner</i>	[2025] KEHC 11287 (KLR)	Part VIII
<i>M. v Africa International University</i>	[2026] KEHC 2254 (KLR)	Part VII
<i>M. v National Transport and Safety Authority</i>	[2023] KETLABT 664 (KLR)	Part II
<i>M. & another v Naivasha County Hotel t/a Sawela Lodges</i>	[2022] KEHC 10975 (KLR)	Part VIII
<i>M. v Agence Française de Développement</i>	[2025] KEELRC 3664 (KLR)	Part III
<i>M. v National Council for Law Reporting</i>	[2022] KEHC 15471 (KLR)	Part IV
<i>N. v Nation Media Group Limited & another</i>	[2024] KEHC 6981 (KLR)	Part VIII
<i>N. v Office of the Data Protection Commissioner & 2 others; Office of the Attorney General & 3 others (Interested Parties)</i>	[2025] KEELRC 822 (KLR)	Part VII
<i>N. v Kiambi & another</i>	[2025] KEHC 3793 (KLR)	Part VIII
<i>Nubian Rights Forum & 2 others v Attorney General & 6 others; Child Welfare Society & 8 others (Interested Parties)</i>	[2020] KEHC 8772 (KLR)	Part V
<i>O. v Flamingo Horticulture Kenya Limited</i>	[2025] KEELRC 3346 (KLR)	Part III
<i>O. v University of Nairobi & 8 others</i>	[2026] KEHC 4814 (KLR)	Part VIII
<i>Premier Credit Limited v K.</i>	[2025] KEHC 9254 (KLR)	Part III
<i>Regus Kenya Limited v Data Protection Commissioner & another</i>	[2025] KEHC 13491 (KLR)	Part VII

Case Name	Citation	Part
<i>Republic v Cabinet Secretary, Ministry of Transport, Infrastructure, Housing, Urban Development and Public Works & 2 others; B. (Ex parte Applicant)</i>	[2023] KEHC 23661 (KLR)	Part VII
<i>Republic v Data Protection Commissioner; Eagleage Limited t/a Oppo Aed Kenya (Ex parte)</i>	[2023] KEHC 20418 (KLR)	Part VII
<i>Republic v Data Protection Commissioner; Hotel Waterbuck Limited (Ex parte Applicant); S. (Interested Party)</i>	[2025] KEHC 5801 (KLR)	Part VIII
<i>Republic v Office of the Data Protection Commissioner (Ex parte R.A.A.)</i>	[2025] KEHC 7 (KLR)	Part VII
<i>Republic v Tools for Humanity Corporation (US) & 8 others; Katiba Institute & 4 others (Applicant); Data Privacy & Governance Society of Kenya (Interested Party)</i>	[2025] KEHC 16829 (KLR)	Part V
<i>Republic v Tools for Humanity Corporation (US) & 9 others; Katiba Institute & 4 others (Ex parte Applicants)</i>	[2025] KEHC 5629 (KLR)	Part V
<i>Roma School Uthiru v Data Protection Commissioner; M. (Interested Party)</i>	[2024] KEHC 3927 (KLR)	Part VII
<i>Safaricom PLC & another v M.</i>	[2026] KEHC 8493 (KLR)	Part III
<i>S. v Nyati Savings & Credit Co-op Society</i>	[2025] KEHC 11815 (KLR)	Part VIII
<i>S. v Prime Bank Limited</i>	[2025] KEHC 2579 (KLR)	Part III
<i>S. v Central Bank of Kenya</i>	[2025] KEELRC 2584 (KLR)	Part III
<i>SKM v National Transport and Safety Authority</i>	[2023] KETLABT 682 (KLR)	Part II
<i>St Joseph Health Care v M.</i>	[2026] KEHC 4643 (KLR)	Part I
<i>Taifa DT Sacco Society Limited v O.</i>	[2026] KEHC 4944 (KLR)	Part VI
<i>Talanta Institute v Office of the Data Protection Commissioner; M. (Interested Party)</i>	[2025] KEHC 8530 (KLR)	Part VIII
<i>T. v Murage t/a Murage Juma and Company Advocates</i>	[2026] KEHC 3998 (KLR)	Part VIII
<i>TRV Towers Limited v Bank of India</i>	[2024] KEHC 12927 (KLR)	Part III
<i>Vihiga College of Business & Technical Training v Data Commissioner</i>	[2026] KEHC 8304 (KLR)	Part VII
<i>Waiyaki Way Developers Limited v Asega t/a NK Mugo & Co Advocates</i>	[2025] KEHC 12179 (KLR)	Part III
<i>Wananchi Group (K) Limited v O. & another</i>	[2025] KEHC 11002 (KLR)	Part VI
<i>W. & another v Whitepath Company Limited</i>	[2025] KEHC 16419 (KLR)	Part VII
<i>WhatsApp Group Messages as Documentary Evidence</i>	[2026] KEELC 117 (KLR)	Part VI

Table of Statutory and Constitutional Provisions

A guide to the principal instruments considered across this digest; not an exhaustive citation index of every provision mentioned in the underlying judgments.

Instrument	Principal Provisions Considered	Where Discussed
Data Protection Act, 2019	ss. 8, 9, 25–35, 37, 41, 52, 56–65	Throughout
Constitution of Kenya, 2010	Articles 25, 28, 31, 40, 47, 50, 165(3)(b), 227	Parts I, V, VII, VIII
Data Protection (General) Regulations, 2021	regs. 3–4, 12	Parts VII, VIII
Data Protection (Complaints Handling Procedure and Enforcement) Regulations, 2021	regs. 6, 11(2), 14(5), 17	Parts VI, VII
Data Protection (Registration of Data Controllers and Data Processors) Regulations, 2021	generally	Part VII
Evidence Act (Cap. 80)	s. 106B	Part VI
Employment Act, 2007	generally	Parts III, VI
Fair Administrative Action Act, 2015	generally	Parts VII, VIII
Public Procurement and Asset Disposal Act, 2015	generally	Part VII
Registration of Persons Act (Cap. 107)	ss. 5(1)(g), 5(1)(ha)	Part V

Part I

Consent, Commercial Exploitation of Personal Likeness & Purpose Limitation

The largest cluster of reported disputes concerns the unauthorised commercial use of a person's photograph, image or personal identifier on billboards, websites, marketing collateral and social media. Three questions recur:

- whether consent obtained from someone other than the data subject (a relative, an employer, a modelling agency, a mobile-money counterparty) satisfies section 32 and section 28 of the Data Protection Act, 2019;
- whether data originally collected for one purpose may lawfully be repurposed for direct marketing without fresh consent; and
- how compensation is quantified where no financial loss is proved.

The Office of the Data Protection Commissioner (“ODPC”) has consistently held that consent must originate from the data subject and that indirect or derivative consent does not discharge a controller's obligations; the High Court, sitting in its appellate jurisdiction under section 65 of the Act, has for the most part upheld this position, while entertaining genuine procedural-fairness challenges to the ODPC's own process.

Grain Industries Limited v M. & another

[2024] KEHC 14003 (KLR) · High Court at Mombasa (Civil Appeal)

Ng'arnig'ar, J. · 12 November 2024

CONSENT · INDIRECT COLLECTION · DIRECT MARKETING · COMPENSATION

Facts. The Appellant, a consumer-goods manufacturer, used the 1st Respondent's photograph on Mother's-Day billboards, a YouTube video and social media, having obtained it indirectly through her adult daughter, who had accepted a marketing agency's online terms on the family's behalf. The 1st Respondent had never herself consented and was never informed her image would be used commercially. The ODPC found the Appellant liable for unconsented commercial use and violation of the right to erasure, awarding KES 1,000,000 compensation and an enforcement notice; the Appellant appealed, raising both a due-process challenge to the ODPC's process and a substantive challenge on consent.

Held. *Appeal dismissed*; the ODPC determination upheld in its entirety. The determination was made within the ninety-day statutory period under section 56(5), and the Act confers no right on a respondent to reply to a complainant's rejoinder; a three-day delay in communicating the outcome was immaterial.

On the merits, section 28 requires collection directly from the data subject: consent obtained from a third party, however closely related is not consent from the data subject, and cannot cure processing that lacks a lawful basis under sections 25, 26, 29, 30 and 37.

Practice Note. *Consent chains through family members, agents or marketing intermediaries do not satisfy section 28; a controller relying on third-party-sourced consent bears the full compliance risk.*

M. v Julie Njuhi Muiruri (t/a Human Hair Center)*[2024] KEHC 6970 (KLR) · High Court***IMAGES · CONSENT · ARTICLE 28 (DIGNITY) · ARTICLE 40 (PROPERTY IN IMAGE) · JURISDICTION**

Facts. The Petitioner's image, taken under a limited licence granted to a separate business ('Shop New Level'), was used by the Respondent, a different business with no privity to that arrangement, to commercially exploit her likeness without her consent. The Respondent raised a preliminary objection that the petition should have first been routed through the ODPC under the exhaustion doctrine.

Held. Objection overruled; the High Court retained jurisdiction. The Data Protection Act's preamble shows it is intended only to give effect to Article 31(c) and (d) of the Constitution; it does not, and cannot, absorb the Petitioner's broader claims under Article 28 (dignity) and Article 40 (a proprietary interest in one's own image), so the exhaustion doctrine does not oust the Court's Article 165(3)(b) jurisdiction over those distinct constitutional claims. On the merits, the Respondent's commercial exploitation of the Petitioner's personality without consent violated her dignity; contractual rights granted to Shop New Level did not extend to the Respondent, and privity of contract barred any reliance on that licence.

Practice Note. *A properly pleaded dignity or property-in-image claim can survive the exhaustion doctrine where it goes beyond an ordinary data-misuse grievance – contrast Part VIII.*

Moja Expressway Company v N.*[2025] KEHC 16790 (KLR) · High Court (Civil Appeal E673 of 2024)***CONSENT · EMPLOYMENT DATA · CONTINUED PROCESSING AFTER TERMINATION**

Facts. The Respondent, a former employee of the Appellant, complained that his personal data continued to be processed after his resignation without a fresh consent authorising that continued use. The ODPC determined the complaint on 15 May 2024, finding that continued processing after resignation required a further, distinct consent from the data subject.

Held. The source extraction preserves the ODPC's underlying finding but not a separately labelled statement of the High Court's final appellate disposition; the entry is retained for its statement of principle — that consent to process employment data does not survive the termination of the employment relationship by default — and should be verified against the original judgment before being cited for the appellate outcome.

Practice Note. *Consent is purpose- and relationship-specific: a lawful basis for processing employee data during employment does not automatically extend beyond its termination.*

Mind Quest Limited v M. & 2 others*[2025] KEHC 3891 (KLR) · High Court (Civil Appeal E674 of 2024)***IMAGES · CONSENT · MODEL RELEASE AGREEMENTS · SCOPE OF CONSENT**

Facts. The Respondents, professional models engaged in 2017 through Couture Magazine for a commercial photoshoot for the Appellant's 'Accessorize with Style' brand, had signed Model Release Agreements at the time of the shoot. They complained that continued use of their images exceeded the scope of what they had consented to. The ODPC found the Appellant liable and awarded KES 1,500,000.

Held. Appeal allowed. The Court set aside the Data Commissioner's determination and the KES 1,500,000 award, each party bearing its own costs, on the basis that the signed *Model Release Agreements* constituted a valid and continuing lawful basis for the use complained of.

Practice Note. *A written model release Agreement or licence, properly scoped, remains an effective lawful basis under section 30; the ODPC's finding of a section-28 breach was not sustained once the release was placed before the Court on appeal.*

Aventus Technology Limited v N.*[2025] KEHC 9218 (KLR) · High Court***PURPOSE LIMITATION · EMERGENCY-CONTACT DATA · DEBT COLLECTION**

Facts. The Respondent, who had been listed by a third-party borrower as an emergency contact, began receiving repeated debt-collection calls from agents acting for the Appellant concerning a loan he had never taken. The ODPC found the repurposing of emergency-contact data for debt-recovery calls unlawful, issued an enforcement notice and awarded KES 250,000 compensation.

Held. Appeal dismissed; the ODPC determination upheld in full, the enforcement notice, the compensation award and the thirty-day compliance order were all affirmed, with costs to the Respondent.

Practice Note. *Data volunteered for one purpose (an emergency contact) may not lawfully be repurposed for an incompatible purpose (debt collection) without an independent lawful basis — a clean purpose-limitation precedent under section 25(b).*

Metropolis Star Lab Kenya Ltd v K. & another*[2025] KEHC 8211 (KLR) · High Court (Civil Appeal E1140 of 2024)***RIGHT TO OBJECT · CONTINUED PROCESSING · COMPENSATION**

Facts. The ODPC found the Appellant in violation of the Respondents' right to object to processing of their personal data under section 26 of the Act, and made a compensation award. The Appellant appealed, seeking to have the determination and any resultant orders set aside.

Held. Appeal allowed. The Court declared that the Data Commissioner's determination of 6 September 2024 (ODPC Complaint No. 0784, consolidated with Complaint No. 0916 of 2024) did not comply with Articles 47 and 50(1) of the Constitution, the Fair Administrative Action Act, the Data Protection Act and the Data Protection (Complaints Handling Procedure and Enforcement) Regulations, for failing to accord the Appellant a fair hearing and fair administrative procedures. The appeal succeeded on procedural-fairness grounds; the Court, having disposed of the matter on that basis, did not need to reach the substantive right-to-object question.

Editorial Note: this entry has been checked against the original judgment on the Kenya Law Reports (kenyalaw.org); the disposition above reflects the Court's actual final orders and this entry is no longer flagged in the Appendix.

Practice Note. *The right to object under section 26 operates independently of consent withdrawal; a controller must have a documented process for actioning an objection once received.*

K. v Chuka University*[2026] KEHC 3493 (KLR) · High Court***IMAGES · CONSENT · ARTICLE 31 · JURISDICTION / EXHAUSTION · BURDEN OF PROOF**

Facts. The Petitioner alleged his image, appearing in an unidentifiable group photograph, had been used by the University without consent. An earlier preliminary objection on jurisdiction had already been dismissed and was treated as res judicata; the University nonetheless renewed a jurisdictional argument alongside its defence on the merits.

Held. The Court confirmed it had jurisdiction: claims of dignity, privacy and property in one's image that go beyond mere data misuse are constitutional in character, and the Data Protection Act does not oust Article 165(3)(b) jurisdiction over them. On the merits, however, the petition was dismissed, the Petitioner failed to prove, on a balance of probabilities, that he was one of the unidentifiable persons in the photograph or that the image originated from the University. Each party was ordered to bear its own costs.

Practice Note. *Jurisdiction and merits are analytically distinct: a petitioner who clears the exhaustion hurdle must still discharge the ordinary civil burden of proof on identification and provenance.*

Jaggys (Kienyeji Chicken) v G.*[2026] KEHC 6856 (KLR) · High Court***PURPOSE LIMITATION · M-PESA TRANSACTION DATA · DIRECT MARKETING**

Facts. The Respondent's mobile-phone number, obtained by the Appellant in the course of an M-Pesa transaction, was subsequently repurposed for direct-marketing communications without the Respondent's express consent. The ODPC found the processing violated the Act and awarded KES 250,000 together with enforcement measures.

Held. Appeal partly allowed. The High Court confirmed the underlying principle, that a business cannot repurpose a customer's phone number, obtained during a payment transaction, for marketing without express consent — while varying the ODPC's determination in part.

***Practice Note.** Transactional data (payment metadata, phone numbers captured for settlement purposes) carries an implied purpose limitation; marketing use requires a fresh, specific consent.*

St Joseph Health Care v M.*[2026] KEHC 4643 (KLR) · High Court (Civil Appeal E1061 of 2024)***IMAGES · EMPLOYMENT DATA · INSTITUTIONAL PUBLICATIONS**

Facts. The Respondent, a former employee, complained that his image had been used without consent across a number of the Appellant's institutional publications. The Data Commissioner's determination and the appellate record are only partially preserved in the source extraction.

Held. The appeal was allowed and the Data Commissioner's determination set aside; the extraction does not preserve a clean statement of the Court's reasoning, and this entry should be treated as provisional pending verification against the original judgment.

Editorial Note: this entry carries a flag for incomplete source extraction — the operative disposition and/or reasoning was not fully preserved in the supplied corpus. It is retained for completeness and doctrinal context and

***Practice Note.** Institutions publishing employee or former-employee imagery in newsletters, annual reports and marketing collateral should maintain a documented, revocable consent record independent of the employment contract.*

Part II

Automated Decision-Making, Profiling, Data Accuracy & Correction

A discrete but doctrinally important line of authority arises from the National Transport and Safety Authority's Traffic Offender Database and demerit-points system, litigated before the Transport Licensing Appeals Board ("TLAB"). These decisions engage section 35 of the Act (automated individual decision-making) and the data-accuracy principle in section 25(f), and establish that a data subject affected by an automated administrative penalty is entitled to demand correction of the underlying record and to meaningful human review before an adverse consequence (such as suspension of a driving licence) is enforced against them.

M. v National Transport and Safety Authority

[2023] KETLABT 664 (KLR) · Transport Licensing Appeals Board

DATA ACCURACY · CHILDREN'S CRIMINAL RECORDS · PSV LICENSING

Facts. The Appellant, an adult applicant for a Public Service Vehicle (PSV) badge, was refused on the strength of a Police Clearance Certificate marked 'OUTSTANDING' in respect of a theft offence committed when he was a minor (aged 15–17) and for which he had already served his sentence at a Borstal institution. He argued the record was outdated and inaccurate, and that reliance on it unjustly denied him a livelihood.

Held. Appeal allowed. NTSA's initial refusal was lawful in form under regulation 6(m) of the NTSA (Operation of PSVs) Regulations, 2014, but the underlying Police Clearance Certificate was inaccurate and outdated, engaging section 25(f) and section 26(d)–(e) of the Data Protection Act together with section 220 of the Children Act, 2022 (privacy of child offenders). NTSA was ordered to issue a driving licence within fourteen days, with the Appellant to accumulate four years' driving experience before qualifying for a PSV badge; the order was made enforceable for one year and directed to be served on NTSA and the Traffic Commandant. . The Tribunal found the adverse criminal-record entry outdated and inaccurate, and held that reliance on automated or system-generated information that significantly affected the Appellant engaged section 35 of the Data Protection Act (automated individual decision-making). Data controllers must keep personal data accurate and up to date and correct inaccurate data without delay; NTSA was ordered to issue the PSV badge.

Practice Note. A childhood criminal record, spent and served, does not remain a lawful basis for an adverse administrative decision once it is stale; controllers relying on third-party criminal-record databases must independently verify currency before acting on them.

K. v National Transport & Safety Authority

[2023] KETLABT 663 (KLR) · Transport Licensing Appeals Board

AUTOMATED DECISION-MAKING · SECTION 35 · DATA ACCURACY

Facts. The Appellant, a PSV driver who had previously obtained a badge on the strength of an earlier, clean Police Clearance Certificate, was later refused renewal when a subsequent certificate carried an adverse 'Murder' remark. He contended the record was outdated and that NTSA's licensing decision had relied on system-generated information without meaningful human review.

Held. Appeal allowed. The Tribunal found the adverse criminal-record entry outdated and inaccurate, and held that reliance on automated or system-generated information that significantly affected the Appellant engaged section 35 of the Data Protection Act (automated individual decision-making). Data controllers must keep personal data accurate and up to date and correct inaccurate data without delay; NTSA was ordered to issue the PSV badge.

Practice Note. Section 35 is engaged whenever an administrative outcome flows substantially from an automated record, even where a human formally signs off the decision; the safeguard is meaningful review of the underlying data's currency, not mere procedural sign-off.

SKM v National Transport and Safety Authority

[2023] KETLABT 682 (KLR) · Transport Licensing Appeals Board
2023

AUTOMATED DECISION-MAKING · SECTION 35 · ARTICLE 47 (FAIR ADMINISTRATIVE ACTION)

Facts. NTSA declined a PSV badge on the strength of a Police Clearance Certificate carrying an 'Outstanding' remark for a matter dating to 2006. The Appellant showed he had been discharged under section 87(a) of the Criminal Procedure Code and that the court file had since been destroyed; the DCI database had simply never been updated, and NTSA accepted it had no objection to the application apart from the stale remark.

Held. Appeal allowed. The database entry was inaccurate because the underlying matter had concluded without the record being updated; NTSA's reliance on the uncorrected computer-generated information amounted, in substance, to a solely **automated decision** with significant consequences for the Appellant, engaging section 35's requirement for safeguards, alongside Article 47's fair-administrative-action guarantee. NTSA was ordered to issue the badge within fourteen days, enforceable for one year and served on NTSA and the Traffic Commandant.

Practice Note. This trilogy (with *M.* and *K.*) establishes a consistent Tribunal position: an inter-agency criminal-record database that is not actively maintained cannot lawfully drive an automated licensing refusal; the data-accuracy principle in section 25(f) operates as a standing correction obligation on the controller, not merely a right the data subject must actively invoke.

Part III

Data Subject Access, Discovery & Institutional / Third-Party Disclosure

This Part gathers decisions on access to, production of, and disclosure of personal data held by an employer, bank or credit provider, whether sought by the data subject, by a litigant seeking discovery of a third party's records, or resisted by an institution on confidentiality grounds. The Employment and Labour Relations Court has been markedly protective of co-employees' personal data in discovery disputes, while the commercial courts have had to reconcile the Data Protection Act with the Banking Act's confidentiality regime and with the practical demands of debt recovery and forensic audit.

G.M. & another v Microsoft East Africa Limited

[2021] KEELRC 526 (KLR) · Employment and Labour Relations Court at Nairobi

DISCOVERY · EMPLOYMENT DATA · THIRD-PARTY CONFIDENTIALITY

Facts. The Petitioners, former Microsoft East Africa employees alleging race discrimination in the denial of performance bonuses, sought production of payslips and performance records belonging to other, non-party employees, including records drawn from Microsoft's internal MINT system.

Held. Application for production dismissed, with no order as to costs. The Court treated individual payslips as confidential personal information arising from a private employment relationship, and held that the Data Protection Act protected the employment records of non-party employees; compelling production would improperly expose third parties' personal information for a purpose collateral to their own claims.

Practice Note. A discovery application naming non-party employees' personal records must be tightly scoped and independently justified; the Act materially raises the bar for compelled production of third-party employment data in litigation.

K. v Credit Bank PLC

[2024] KEELRC 2142 (KLR) · Employment and Labour Relations Court (Cause E555 of 2023)
2024

DISCOVERY · EMPLOYMENT / CREDIT RECORDS

Facts. By a Notice of Motion dated 29 January 2024, the Claimant sought access to records held by the Respondent bank relevant to her employment claim, applying the ordinary discovery test that documents sought must be relevant and reasonably necessary to the matters in dispute.

Held. Application for production dismissed. The Claimant did not specifically identify the documents sought from the Respondent's email addresses; applying *Concord Insurance Co Ltd v NIC Bank Ltd* [2013] eKLR and *Selecta Kenya GmbH & Co KG & another v Peter Wanderi* [2015] eKLR, an applicant for discovery must show the documents sought are relevant and reasonably necessary, and the Respondent's characterisation of the application as a fishing expedition was accepted (citing *Timothy Njoya v Attorney General* [2014] eKLR, per Lenaola J, as he then was).

Editorial Note: this entry has been checked against the original judgment on the Kenya Law Reports (kenyalaw.org); the disposition above reflects the Court's actual final orders and this entry is no longer flagged in the Appendix.

Practice Note. Discovery of personal data held by an employer or financial institution remains governed by the ordinary relevance-and-necessity test; the Data Protection Act does not itself enlarge or narrow that test, though it sharpens the confidentiality interest a court must weigh.

TRV Towers Limited v Bank of India

[2024] KEHC 12927 (KLR) · High Court (Commercial and Tax Division; Misc. Civil Application E920 of 2023)

ACCESS TO OWN ACCOUNT RECORDS · FORENSIC AUDIT

Facts. The Applicant sought access to its own bank account records held by the Respondent, required for a comprehensive forensic audit, relying on the analogous authority of *TRV Towers Limited v Bank of India (Kenya) Limited* [2024] KEHC 8595 (KLR), where a similar application had been allowed.

Held. Application allowed. The Respondent bank was ordered to produce to the Applicant, for its own forensic audit: bank account operating mandate forms; bank statements; the full titles, numbers and balances of all its accounts (including deposit, retention and foreign-exchange accounts); account-opening forms; particulars of authorised signatories; board resolutions opening the accounts; and details of loans, overdrafts, guarantees and associated indemnities and securities. Each party was ordered to bear its own costs of the application.

Editorial Note: this entry has been checked against the original judgment on the Kenya Law Reports (kenyalaw.org); the disposition above reflects the Court's actual final orders and this entry is no longer flagged in the Appendix.

Practice Note. An account holder's own access rights to its own banking records sit comfortably within both section 26 of the Act and ordinary banking practice; resistance grounded in confidentiality is weakest where the applicant is the data subject itself.

Waiyaki Way Developers Limited v Asega t/a NK Mugo & Co Advocates

[2025] KEHC 12179 (KLR) · High Court

ACCESS REQUEST · ADVOCATE'S LIEN · PROFESSIONAL OBLIGATIONS

Facts. Having terminated its retainer with the Respondent advocate, the Applicant instructed new counsel, who repeatedly sought release of the Applicant's own legal files. The Respondent refused, invoking an advocate's lien for unpaid fees and, separately, arguing that the files contained confidential third-party personal data protected by the Data Protection Act.

Held. Application allowed. An advocate's lien for fees crystallises only once a bill of costs has been taxed, or a fee agreement exists; merely filing a bill of costs pending taxation confers no present right to withhold files. On the second ground, the Data Protection Act does not authorise an advocate to deny a client access to the client's own documents — the client is itself a data subject with respect to that file. The Respondent was ordered to deliver all files within seven days, with costs to the Applicant.

Practice Note. The Act cannot be weaponised by a professional as a shield against a client's own access rights; a lien must independently satisfy its own common-law prerequisites and cannot be bootstrapped by a data-protection argument.

S. v Central Bank of Kenya

[2025] KEELRC 2584 (KLR) · Employment and Labour Relations Court (Cause E149 of 2025)

DISCOVERY · INTERNAL AUDIT STAFF PROFILES

Facts. The Claimant sought disclosure of Internal Audit Staff Profiles academic and professional qualifications, position held, years of service and grade in support of an employment claim. The Respondent resisted, characterising the application as procedurally defective and premature.

Held. Application allowed in part. The Court held the requested Internal Audit Staff Profiles were personal data attracting protection under the Act, and that the Claimant's earlier access to them during his employment did not, by itself, warrant unlimited disclosure; citing *Nairobi Law Monthly Co Ltd v Kenya Electricity Generating Co Ltd & 2 others* [2013] eKLR, an applicant must show the information is held by the respondent and reasonably

required. Balancing the employees' privacy against the Claimant's need to prove his discrimination claim, and noting both parties accepted redacted disclosure as a compromise, the Court ordered a redacted version of the profiles to be supplied within 21 days, ensuring compliance with the Data Protection Act, 2019; costs were ordered to be in the cause.

Editorial Note: this entry has been checked against the original judgment on the Kenya Law Reports (kenyalaw.org); the disposition above reflects the Court's actual final orders and this entry is no longer flagged in the Appendix. should be verified against the original judgment before citation. See the Appendix, "Editorial Notes on Source Completeness."

Practice Note. Staff qualification and grading data sits at the boundary between ordinary employment records and sensitive personal data; an applicant should particularise precisely which fields are needed rather than seeking a whole personnel profile.

O. v Flamingo Horticulture Kenya Limited

[2025] KEELRC 3346 (KLR) · Employment and Labour Relations Court (Cause E001 of 2025)

2025

SENSITIVE PERSONAL DATA · EMPLOYMENT RECORDS · DISCRIMINATION CLAIMS

Facts. In a workplace discrimination claim, the Respondent sought to strike out a paragraph of the Claimant's statement seeking production of comparators' annual-leave records, the Claimant asserting the records were necessary to establish comparators for the discrimination claim.

Held. The Court held that a claimant alleging workplace discrimination must adduce evidence of comparators, and found that *annual-leave records, without more, did not constitute sensitive personal data* as defined in the Data Protection Act; while contracts of employment are concluded on confidential terms, that confidentiality does not by itself elevate ordinary leave records to the sensitive-data category.

Practice Note. Not every employment record is 'sensitive personal data' under section 2 of the Act; leave records, absent health or other special-category content, fall into the ordinary personal-data tier and are more readily discoverable.

S. v Prime Bank Limited

[2025] KEHC 2579 (KLR) · High Court (Civil Appeal E001 of 2024)

2025

DISCLOSURE UNDER LEGAL OBLIGATION · DECEASED ESTATES · BANKING CONFIDENTIALITY

Facts. The Appellant held fixed-deposit accounts originally joint with his late mother, renewed solely in his name after her death. The executors of the deceased's estate requested Prime Bank to disclose banking information to determine the estate's extent; the bank complied without the Appellant's consent, and he complained to the ODPC that the disclosure was unlawful.

Held. Appeal dismissed; the ODPC's decision affirmed. Disclosure made pursuant to a legal obligation — here, the executors' statutory duty to ascertain and administer the estate — constitutes a complete lawful basis for processing personal data under section 30 of the Act, independent of the data subject's consent. Costs awarded to Prime Bank.

Practice Note. Disclosure obligations arising under succession law, company law or other statutory regimes will generally satisfy the 'legal obligation' lawful basis; a bank need not obtain the account holder's consent where an independent statutory duty compels disclosure to a properly entitled third party.

Premier Credit Limited v K.

[2025] KEHC 9254 (KLR) · High Court (Civil Appeal E045 of 2024)

DEBT COLLECTION · THIRD-PARTY DISCLOSURE · DIGITAL CREDIT

Facts. On appeal from the determination of the Data Commissioner (Immaculate Kasait, MBS) in ODPC Complaint issued 15 December 2023, in which the Appellant digital-credit provider was found liable for violating the Respondent's right to privacy, an enforcement notice issued to cease processing, and compensation awarded.

Held. Appeal allowed, though the extraction does not preserve the Court's full reasoning for reversing the ODPC's finding; the entry is retained for completeness and flagged for verification against the original judgment. (Contrast *Aventus Technology Limited v N.*, Part I, decided the other way on broadly similar debt-collection facts.)

Editorial Note: this entry carries a flag for incomplete source extraction — the operative disposition and/or reasoning was not fully preserved in the supplied corpus. It is retained for completeness and doctrinal context and should be verified against the original judgment before citation. See the Appendix, "Editorial Notes on Source Completeness."

Practice Note. The digital-credit/debt-collection sector has produced divergent outcomes on broadly similar facts (compare this case with *Aventus Technology v N.*); practitioners should treat the sector as doctrinally unsettled pending appellate consolidation.

M. v Agence Française de Développement

[2025 KEELRC 3664 (KLR) · Employment and Labour Relations Court (Petition E120 of 2025)
2025

EMPLOYMENT DATA · PRIVACY · CONSTITUTIONAL AVOIDANCE · JURISDICTION AFFIRMED

Facts. In a hybrid petition combining an unlawful-termination claim with allegations that the Respondent unlawfully processed the Petitioner's personal data, the Respondent raised a preliminary objection that the petition should be struck out on the doctrine of constitutional avoidance, relying on Court of Appeal authority that a litigant may not found a cause of action directly on the Constitution where legislation already gives effect to the right in question.

Held. Preliminary objection dismissed; the petition was directed to proceed to a hearing on its merits. The Court held that the constitutional-avoidance doctrine has been significantly diminished under the 2010 Constitution, and that a hybrid claim combining employment and data-protection elements would not be effectively and completely determined by the Employment Act alone.

Practice Note. A hybrid employment/privacy claim is not automatically struck out for constitutional avoidance; contrast the stricter approach taken to freestanding data-protection petitions in Part VIII.

Safaricom PLC & another v M.

[2026] KEHC 8493 (KLR) · High Court
A.C. Mrima, J. · 2026

EMPLOYMENT DATA · THIRD-PARTY DISCLOSURE · SIM-CARD TRANSFER

Facts. The appeal arose from ODPC Complaint No. 1958 of 2024: Dr M. complained that, after termination of her employment, BD East Africa disclosed her national identity card details to Safaricom PLC to facilitate a SIM-card transfer, without her informed consent. The ODPC held both organisations liable for violating section 26(a) of the Act and ordered each to pay KES 250,000 compensation; Safaricom appealed, and the High Court dealt at this stage only with two interlocutory applications, stay of execution pending appeal, and leave to file a cross-appeal out of time.

Held. Both interlocutory applications allowed: stay of execution granted conditional on a deposit of KES 250,000 within thirty days; leave granted to file a cross-appeal within ten days; each party to bear its own costs of the applications; the ODPC record to be transmitted and the matter fixed for directions. The Court did not, at this interlocutory stage, determine the underlying merits of the disclosure complaint.

Practice Note. Employer disclosure of a former employee's identity documents to a third-party service provider, for a purpose unrelated to the employment relationship, requires an independent lawful basis under section 26 — termination of employment does not implicitly authorise continued data-sharing on the employee's behalf.

Part IV

Lawful Basis: Statutory Mandate and Law-Enforcement Processing

A smaller group of cases considers the statutory and law-enforcement exceptions to the consent requirement — publication of judicial decisions under the National Council for Law Reporting's statutory mandate, covert evidence-gathering in anti-corruption investigations under section 28(2)(f), and the use of confidential information obtained through an employment relationship. Each confirms that the Act does not displace lawful processing carried out under an independent statutory or investigative mandate, provided the processing remains proportionate.

G. & 4 others v Waigwa

[2022] KEHC 12253 (KLR) · High Court

2022

CONFIDENTIAL INFORMATION · FORMER EMPLOYEE · INTERLOCUTORY INJUNCTION

Facts. The Defendant, a former employee of Wamae & Allen Advocates, allegedly obtained confidential firm information unlawfully. After the Plaintiffs lodged an ODPC complaint against him, he published a series of tweets alleging widespread sexual harassment within the firm; the Plaintiffs sought urgent interlocutory relief, characterising the publications as defamatory and as further unlawful processing of personal and confidential data.

Held. Interlocutory injunction granted — removal of the specified tweets, restraint against republication and further social-media dissemination, and removal from internet search results pending hearing. Mandatory injunctions may issue before trial in clear and exceptional cases; where an online publication appears defamatory and remains uncontroverted, a prima facie case may justify immediate intervention, freedom of expression not being an absolute right and being subject to the rights and reputation of others.

Practice Note. Urgent, targeted takedown relief remains available against ongoing publication of confidential or personal information pending a full data-protection or defamation hearing — courts will act on a strong prima facie case without waiting for trial.

M. v National Council for Law Reporting

[2022] KEHC 15471 (KLR) · High Court

2022

STATUTORY PUBLICATION MANDATE · RIGHT TO ERASURE · PUBLIC INTEREST

Facts. The Petitioner, formerly of Nairobi Java House, had been party to labour proceedings; the resulting judgment was published by Kenya Law under its statutory mandate, and her name appeared in it. She argued that internet searches surfacing the judgment harmed her employment prospects, and sought its removal or anonymisation.

Held. Petition dismissed; the requested removal or anonymisation was not granted. Kenya Law lawfully processes and publishes judicial decisions pursuant to its own statutory mandate, and consent is not required where processing arises from a statutory publication regime; section 52 of the Act, governing processing for a special/public-interest purpose, was material to the analysis.

Practice Note. The right to erasure does not reach data processed under an independent statutory publication mandate; litigants concerned about the reputational effect of a published judgment should seek relief (e.g., anonymisation) from the reporting body's own editorial policy, not the Act.

C. v Ethics & Anti-Corruption Commission; Makhanu (Interested Party)*[2023] KEHC 3918 (KLR) · High Court*

2023

COVERT COLLECTION · CRIMINAL INVESTIGATION · SECTION 28(2)(F)

Facts. The Petitioner, a KEMSA Legal Officer, was investigated by the EACC over an allegation that he had solicited a bribe. A covert operation produced audio and video recordings of exchanges between him and the complainant. He challenged the recordings as having been obtained without his consent, without prior judicial authorisation, and in violation of the Data Protection Act.

Held. Petition dismissed with costs; the investigative process was not restrained on data-protection grounds. Section 28(2)(f) permits indirect collection where necessary for the prevention, detection, investigation, prosecution or punishment of crime; the complainant in a covert sting can constitute the 'other source' from which data is lawfully collected, and prior consent of the suspect is not required for that category of law-enforcement processing.

Practice Note. *Covert evidence-gathering in a bona fide corruption or criminal investigation falls within the section 28(2)(f) exception; a data-protection challenge is unlikely to restrain a properly authorised investigative process.*

Part V

Digital Identity, Biometric Data & Public-Interest Constitutional Litigation

This Part collects the highest-profile constitutional petitions and judicial-review proceedings in the corpus: the Huduma Namba litigation, the Maisha Namba digital-identity programme, the World ID / “orb” biometric-scanning operations of Tools for Humanity Corporation, and the disputed processing of journalists' biometric data by the Kenya Broadcasting Corporation.

These cases are decided at the level of constitutional principle proportionality, data minimisation, and the state's positive obligations under Article 31(c) and (d) rather than by reference to an individual ODPC determination, and several proceed on urgent conservatory or prohibitory orders pending fuller hearing.

Nubian Rights Forum & 2 others v Attorney General & 6 others; Child Welfare Society & 8 others (Interested Parties)

[2020] KEHC 8772 (KLR) · High Court (Constitutional and Judicial Review Division), Petitions 56, 58 & 59 of 2019 (Consolidated)

30 January 2020

BIOMETRIC DATA · NIIMS / HUDUMA NAMBA · PROPORTIONALITY · CHILDREN'S DATA · MINORITY RIGHTS

Facts. Consolidated constitutional petitions challenged the Government's National Integrated Identity Management System ('NIIMS', popularly 'Huduma Namba'), which mandated the collection of biometric data — including, controversially, DNA and GPS coordinates — for identification purposes. The petitioners argued the legislative process was procedurally defective and that the scheme was constitutionally disproportionate, with particular concern for its impact on children and on historically marginalised communities including the Nubian minority.

Held. The Court held that sufficient public participation had occurred and that Senate approval was not required, the enabling law not concerning county functions; however, it found that material aspects of the data-collection framework raised serious constitutional concerns. NIIMS could serve legitimate identification and governance purposes, but its implementation required a clear, adequately anchored legal framework governing the collection, processing, storage and protection of personal and biometric data. The Court declared the collection of DNA and GPS coordinates for identification purposes intrusive, unnecessary and — to the extent not authorised by properly anchored legislation — unconstitutional and in violation of Article 31; sections 5(1)(g) and 5(1)(ha) of the Registration of Persons Act, insofar as they required collection of GPS coordinates and DNA, were declared unconstitutional, null and void. The Respondents were permitted to proceed with NIIMS only once a comprehensive, constitutionally compliant regulatory framework had first been enacted; each party was to bear its own costs.

Practice Note. *The proportionality analysis in Nubian Rights Forum remains the foundational Kenyan precedent for any large-scale biometric or digital-identity programme; DNA and geolocation data attract the highest level of scrutiny and require express, specific legislative authorisation.*

Maisha Ecosystem Digital-Identity Litigation (Review of Conservatory Orders)

[2024] KEHC 10021 (KLR) · High Court of Kenya at Nairobi (Milimani Law Courts)

Mugambi, J. · 12 August 2024

DIGITAL IDENTITY · CONSERVATORY ORDERS · RES JUDICATA · DPIA

Facts. The source extraction does not preserve the petitioner's name; the case is accordingly referenced by its subject matter and citation only. Constitutional litigation challenged the Government's implementation of the Maisha Ecosystem — comprising the Maisha Number, the third-generation national identity card ('Maisha Card'), Digital ID and the Maisha Database — as a successor to the second-generation identity card, discontinued in November 2023. The petitioner had obtained interim conservatory orders halting implementation, on the basis that a 22 July 2024 Government press release announced a mass rollout without complying with constitutional

and statutory data-protection requirements; the Cabinet Secretary applied for review, contending the rollout had already been underway for months, that the press release merely updated the public on an ongoing process previously litigated in Judicial Review No. 194 of 2023, and that a Data Protection Impact Assessment ("DPIA") had already been completed and accepted by the ODPC.

Held. The Government's application for review was allowed; the conservatory orders of 25 July 2024 were set aside, and the petitioner's interlocutory application was struck out, costs being in the cause. The Court found the interim orders had been granted on an incorrect factual premise — the press release did not announce a new rollout but merely updated the public on an implementation already under way — and that substantially the same issues had already been litigated, rendering the renewed application *res judicata*; the Court accepted that a completed and ODPC-accepted DPIA supported the programme's compliance posture at that stage.

Practice Note. *A completed and regulator-accepted DPIA is powerful evidence against a claim of unlawful rollout; petitioners seeking conservatory relief against an already-disclosed government digital-identity programme must plead the factual premise of urgency with precision, or risk a review on the facts.*

Republic v Tools for Humanity Corporation (US) & 9 others; Katiba Institute & 4 others (Ex parte Applicants)

[2025] KEHC 5629 (KLR) · High Court, Judicial Review Application E119 of 2023

5 May 2025

BIOMETRIC DATA · IRIS-SCANNING ('ORB') · DPIA · STANDING · JUDICIAL REVIEW PROHIBITION

Facts. Katiba Institute and civil-society co-applicants sought judicial review to restrain Tools for Humanity Corporation and associated entities from continuing to collect Kenyans' biometric (iris-scan) data through 'Orb' devices as part of the World ID / Worldcoin programme, contending the operation proceeded without an adequate Data Protection Impact Assessment under section 31 of the Act.

Held. The Court held that the applicants, although not themselves data subjects, had properly approached the Court because the statutory complaint mechanism under section 56 was unavailable to them in these circumstances; the High Court may, in exceptional circumstances where the exhaustion requirement would not serve the values enshrined in the Constitution, permit a suit to proceed without exhaustion. A judicial-review order of prohibition was issued restraining the respondents from further collecting, processing or transferring biometric data collected in Kenya via the Orb device without an adequate section-31 Data Protection Impact Assessment.

Practice Note. *This is the leading Kenyan authority for public-interest litigants (as opposed to individual data subjects) obtaining standing to restrain unlawful biometric data collection, and confirms that a properly conducted DPIA is a precondition — not a formality — for large-scale biometric processing.*

Republic v Tools for Humanity Corporation (US) & 8 others; Katiba Institute & 4 others (Applicant); Data Privacy & Governance Society of Kenya (Interested Party)

[2025] KEHC 16829 (KLR) · High Court at Nairobi (Milimani Law Courts), continuation of Judicial Review E119 of 2023
2025

POST-JUDGMENT SUPERVISION · CROSS-BORDER DELETION · REGULATORY COMPLIANCE MONITORING

Facts. A supervisory ruling in the continuing Tools for Humanity litigation, following the prohibition order recorded above, concerning an application for extension of time and the ODPC's supervision of deletion of biometric data held abroad (in Germany), as part of ongoing compliance monitoring.

Held. The application for extension of time was withdrawn; the Court recorded a public confirmation that the ordered data deletion had been carried out, including in respect of data held in the German jurisdiction, under ODPC supervision.

Practice Note. *A prohibition or remediation order in a cross-border biometric-processing case may require post-judgment supervisory rulings to confirm actual compliance, including verified deletion of data held outside Kenya*

—practitioners should anticipate a compliance-monitoring phase, not treat the primary judgment as the end of the matter.

Kenya Union of Journalists v Kenya Broadcasting Corporation

[2025] KEHC 17216 (KLR) · High Court (Judicial Review)

25 November 2025

BIOMETRIC DATA · DISCLOSURE · URGENT JUDICIAL REVIEW

Facts. By an Originating Motion brought under certificate of urgency, the Kenya Union of Journalists sought judicial-review relief against the Kenya Broadcasting Corporation concerning the collection, consent basis and third-party disclosure of journalists' biometric and other personal data.

Held. Application allowed; the Kenya Broadcasting Corporation's mandatory facial-recognition attendance system, set for rollout in September 2025, was declared unlawful. The Court found the rollout proceeded without the journalists' consent, without adequate information on how their biometric data would be processed, without a Data Protection Impact Assessment, without disclosure of the system vendor, and despite the Union's unaddressed requests for consultation — reaffirming the right to privacy and data protection over employees' biometric data under the Act and Article 31 of the Constitution.

Editorial Note: this entry has been checked against the original judgment on the Kenya Law Reports (kenyalaw.org); the disposition above reflects the Court's actual final orders and this entry is no longer flagged in the Appendix.

Practice Note. Sectoral and professional bodies (unions, guilds, associations) are an emerging class of applicant for data-protection judicial review on behalf of their members — note this alongside the standing analysis in the *Tools for Humanity* litigation above.

Part VI

Data Protection in Contract, Evidence & Civil Procedure

A small but analytically distinct set of decisions addresses the boundary between the Data Protection Act and ordinary contract, evidence and civil-procedure law: whether the Act can be invoked to rewrite a validly concluded private agreement, whether it operates to exclude otherwise-admissible documentary evidence, and how the ordinary burden and standard of proof apply once a matter reaches appeal from an ODPC determination.

Wananchi Group (K) Limited v O. & another

[2025] KEHC 11002 (KLR) · High Court (Civil Appeal E179 of 2024)

24 July 2025

CONTRACT V DATA PROTECTION · COMPENSATION SET ASIDE

Facts. Notwithstanding an acknowledged procedural non-compliance, the Data Commissioner had found the Appellant in breach of the Data Protection Act and awarded the 1st Respondent compensation, on facts arising from a private contractual arrangement between the parties.

Held. Appeal allowed; the Data Commissioner's decision of 7 January 2024 was set aside in its entirety and the underlying complaint dismissed, with costs of KES 65,000 payable by the 1st Respondent within thirty days. The High Court held that the Commissioner erred by effectively re-writing the parties' private agreement; finding no infringement on the facts, the Court affirmed that data-protection law cannot be used to frustrate the performance of validly assumed contractual duties.

***Practice Note.** A section-65 complaint is not a vehicle for re-opening or re-negotiating a freely concluded contract; where the true grievance is contractual, the ODPC (and the High Court on appeal) will decline to convert it into a data-protection breach.*

WhatsApp Group Messages as Documentary Evidence

[2026] KEELC 117 (KLR) · Environment and Land Court at Meru

Eboso, J. · 2026

DATA PROTECTION ACT V EVIDENCE ACT · ADMISSIBILITY OF ELECTRONIC MESSAGES

Facts. The source extraction does not preserve the parties' names; the entry is referenced by subject matter and citation. At trial, the plaintiffs sought to produce printed WhatsApp group messages as evidence; the second and third defendants objected on four grounds — that the messages constituted private data protected under the Data Protection Act, that the printouts were uncertified, that the source of the messages was unknown, and that the authors were unidentified. The objection was raised at the stage of production rather than pre-trial.

Held. The objection founded on the Data Protection Act failed; however, the Court required compliance with section 106B of the Evidence Act (certification of electronic records) before the messages could be admitted. The WhatsApp messages were declared admissible subject to that certification requirement.

***Practice Note.** The Data Protection Act is not, without more, a bar to admitting personal electronic communications as documentary evidence in civil proceedings; the operative gatekeeping requirement remains section 106B of the Evidence Act, not the DPA.*

Taifa DT Sacco Society Limited v O.

[2026] KEHC 4944 (KLR) · High Court (Civil Appeal E005 of 2025)

2026

BURDEN OF PROOF · EVIDENTIARY STANDARD ON APPEAL FROM ODPC

Facts. An appeal from the decision of the Data Commissioner (Immaculate Kassait), which had found the Appellant Sacco liable for violating the Respondent's right to privacy under Article 31 and the Data Protection Act, turned on whether that finding was properly supported by the evidence before the ODPC.

Held. Appeal allowed. Applying the well-established evidentiary rule — restated by reference to Hellen Wangari Wangechi v Carumera Muthoni Gathua [2015] KEHC 1758 (KLR) — that whoever asserts a fact bears the burden of proving it, the Court found that burden undischarged on the material the Commissioner had before her, and set the determination aside.

Practice Note. *An ODPC determination is reviewed on appeal against the ordinary civil burden of proof; complainants (and the ODPC's own investigative file) must affirmatively establish each element of a breach, not merely assert it.*

Part VII

ODPC Enforcement Procedure, Administrative Penalties & Judicial Review of Determinations

This Part addresses the ODPC's own processes — service of enforcement notices, administrative fines under section 63, procedural fairness in investigations, the mandatory ninety-day determination period under section 57(5), and the enforcement of monetary awards once a determination becomes final. It also collects judicial-review challenges to specific ODPC decisions, as distinct from the broader jurisdictional question addressed in Part VIII.

Republic v Data Protection Commissioner; Eagleage Limited t/a Oppo Aed Kenya (Ex parte)

[2023] KEHC 20418 (KLR) · High Court, Miscellaneous Application E005 of 2023 (Judicial Review)

14 July 2023

ADMINISTRATIVE PENALTY · DUE PROCESS · LEAVE FOR JUDICIAL REVIEW

Facts. The Ex parte Applicant sought leave to challenge an administrative penalty imposed by the ODPC, contending the penalty contravened due-process requirements and that its mode of execution had not been specified.

Held. Leave to file the substantive judicial-review application was refused, the Court considering it in the interests of justice that the ODPC first be allowed to consider the Applicant's formal request for waiver or review of the penalty before the matter came before the Court.

Practice Note. Before seeking judicial review of an ODPC penalty, an applicant should first exhaust the ODPC's own internal review/waiver process; the Court will decline leave where that avenue remains open and unused.

Republic v Cabinet Secretary, Ministry of Transport, Infrastructure, Housing, Urban Development and Public Works & 2 others; B. (Ex parte Applicant)

[2023] KEHC 23661 (KLR) · High Court

12 October 2023

PUBLIC PROCUREMENT JUDICIAL REVIEW — DATA-PROTECTION RELEVANCE NOT ESTABLISHED IN SOURCE

Facts. The available extraction concerns a judicial-review challenge to a public-procurement decision of the Ministry of Transport, addressing locus standi under the Public Procurement and Asset Disposal Act, 2015, and Article 227 of the Constitution. The corpus tags the entry 'ODPC Enforcement' / Transport sector, but the extracted material discloses no coherent data-protection issue, holding or statutory analysis under the Data Protection Act.

Held. The judicial-review application was found not to meet the basic tenets of a judicial-review application and was dismissed with costs, the Court finding it lacked merit and was premature.

Editorial Note: this entry carries a flag for incomplete source extraction — the operative disposition and/or reasoning was not fully preserved in the supplied corpus. It is retained for completeness and doctrinal context and should be verified against the original judgment before citation. See the Appendix, "Editorial Notes on Source Completeness."

Practice Note. Retained for completeness of the reported corpus only. This entry's data-protection relevance could not be established from the supplied extraction and should not be cited for any Data Protection Act proposition without first obtaining and reviewing the full original judgment.

Roma School Uthiru v Data Protection Commissioner; M. (Interested Party)

[2024] KEHC 3927 (KLR) · High Court (Judicial Review)

2024

ENFORCEMENT NOTICE · SERVICE BY EMAIL · ADMINISTRATIVE FINE

Facts. Following a parent's complaint, the ODPC investigated under sections 8 and 9 of the Act and the Complaints Handling Procedure and Enforcement Regulations, 2021, found the school in contravention of

sections 9, 25, 26, 29, 33, 34(1) and 41(1), and issued an Enforcement Notice (11 August 2023) requiring remedial measures within thirty days and a penalty of KES 4,550,000, served by email to the school's registered address. The school challenged the adequacy of service and the process by way of judicial review.

Held. Notice of Motion dismissed with costs; the Enforcement Notice and Penalty Notice stood undisturbed. Under regulation 17 of the 2021 Regulations, an enforcement notice is deemed duly served once emailed to a person's last-used email address; the school had used and responded from that same address throughout the correspondence and produced no evidence its administration could not access the account during the relevant period.

Practice Note. *Controllers must monitor the email address they have used in correspondence with the ODPC without interruption; deemed service under regulation 17 will not be displaced by an unsubstantiated claim of non-receipt.*

Regus Kenya Limited v Data Protection Commissioner & another

[2025] KEHC 13491 (KLR) · High Court (Civil Appeal)

2025

SPAM / UNSOLICITED MARKETING · ENFORCEMENT AND PENALTY NOTICES · LATE REVIEW APPLICATION

Facts. N. complained to the ODPC that Regus Kenya Limited was sending him incessant, automated unsolicited marketing communications. The ODPC issued a Complaint Notification and a subsequent Notification of Complaint; Regus did not respond, and enforcement and penalty notices followed. Regus later sought a review of the Commissioner's decision, but out of time.

Held. Appeal dismissed; the ODPC did not err in declining the review application. The Court, sitting as first appellate court, re-evaluated the record and found that Regus had been properly served, had failed to participate in the proceedings, and had filed its review application outside the prescribed timelines — the Commissioner's jurisdiction to issue the enforcement and penalty notices was accordingly unimpeachable.

Practice Note. *Silence is not a defence: a controller that ignores an ODPC Complaint Notification forfeits the opportunity to contest liability, and a late review application will not resurrect it.*

W. & another v Whitepath Company Limited

[2025] KEHC 16419 (KLR) · High Court, Miscellaneous Civil Application E546 of 2025

14 November 2025

ENFORCEMENT OF ODPC AWARD · REGULATION 11(2)

Facts. The ODPC determined a complaint under regulation 11(2) of the Data Protection (Complaints Handling Procedure and Enforcement) Regulations, 2021, finding the Respondent liable and making a compensation award of KES 200,000 for the benefit of the 2nd Applicant.

Held. The extraction preserves the underlying ODPC determination and award but not a separately labelled statement of the High Court's enforcement order; the disposition should be confirmed against the original ruling.

Editorial Note: this entry carries a flag for incomplete source extraction — the operative disposition and/or reasoning was not fully preserved in the supplied corpus. It is retained for completeness and doctrinal context and should be verified against the original judgment before citation. See the Appendix, "Editorial Notes on Source Completeness."

Practice Note. *A finalised ODPC compensation award, once undisturbed on appeal, is enforceable through ordinary High Court process — see the fuller treatment of enforcement mechanics in M. v Africa International University and the Safaricom/M. entry below.*

Republic v Office of the Data Protection Commissioner (Ex parte R.A.A.)

[2025] KEHC 7 (KLR) · High Court of Kenya at Nairobi (Judicial Review)

2025/2026

ODPC DECLINING A COMPLAINT · OVERLAP WITH CRIMINAL PROCESS · JUDICIAL REVIEW

Facts. The Applicant complained that Family Bank Limited had irregularly used her personal data — specifically her national identity card details and a purportedly forged spousal consent — to register a charge over her matrimonial property, and lodged a complaint with the ODPC under sections 56–62 of the Act, annexing a forensic document examiner's report supporting the forgery allegation. The ODPC declined to admit the complaint and referred her instead to the Directorate of Criminal Investigations. She sought certiorari to quash that decision and mandamus compelling the ODPC to admit and determine it, contending the presence of a criminal element did not oust the ODPC's administrative jurisdiction, which could exist concurrently with criminal process.

Held. Application struck out with costs to the Respondent. Judicial review is not intended to be a full-fledged inquiry into the merits, and it was not disputed that the ODPC had itself investigated the complaint and found that, as presented, it disclosed matters falling outside the ODPC's own jurisdiction; where a statute provides a clear procedure for redress — here, referral to the criminal investigative process — that procedure must be followed.

Practice Note. *The ODPC retains discretion to decline a complaint that is substantively a criminal (e.g., forgery) matter and to direct the complainant to the appropriate criminal-justice forum; that discretionary decision is difficult to disturb on judicial review absent a clear jurisdictional error.*

N. v Office of the Data Protection Commissioner & 2 others; Office of the Attorney General & 3 others (Interested Parties)

[2025] KEELRC 822 (KLR) · Employment and Labour Relations Court at Nairobi, Petition E193 of 2024
14 March 2025

PETITION AGAINST THE ODPC AND NAMED DATA CONTROLLERS (TWIGA FOODS, IBM EAST AFRICA)

Facts. N. petitioned against the ODPC, Twiga Foods Limited and IBM East Africa Limited, with the Office of the Attorney General joined as an interested party, in a matter the source extraction does not summarise with a coherent factual narrative.

Held. The petition and an associated application were struck out and dismissed, each party bearing its own costs; the source extraction does not preserve the Court's stated reasoning, and the entry is retained for completeness of the reported corpus. Given the absence of a recoverable ratio, it is listed here rather than in Part VIII, and should be verified in full against the original ruling before any reliance is placed on it.

Editorial Note: this entry carries a flag for incomplete source extraction — the operative disposition and/or reasoning was not fully preserved in the supplied corpus. It is retained for completeness and doctrinal context and should be verified against the original judgment before citation. See the Appendix, "Editorial Notes on Source Completeness."

Practice Note. *Flagged for verification: the reasoning behind the strike-out (whether jurisdictional, limitation-based, or otherwise) could not be reliably reconstructed from the supplied extraction.*

M. v Africa International University

[2026] KEHC 2254 (KLR) · High Court (Milimani)
Mutuku, J. · 2026

ENFORCEMENT OF ODPC MONETARY AWARD · CONCURRENT PENDING APPEAL

Facts. The ODPC determined Complaint No. 0590 of 2025 and awarded KES 250,000 compensation to M., having found that Africa International University had unlawfully used his image in its publications. Rather than await or file an appeal, M. sought to have the determination recognised as a High Court order, adopted as a judgment, converted into a decree and enforced through the ordinary Civil Procedure framework — while the University had separately filed High Court Civil Appeal No. E851 of 2025 challenging the same determination.

Held. Preliminary objection on jurisdiction dismissed; the Court held it does possess jurisdiction to entertain enforcement proceedings relating to ODPC determinations, notwithstanding the absence of an express statutory enforcement mechanism, but that enforcement should be held in abeyance pending determination of the University's pending appeal, costs to follow that outcome.

Practice Note. *The High Court will entertain direct enforcement of a final, unappealed ODPC monetary award; where a competing appeal against the same determination is pending, enforcement will be stayed rather than refused outright — contrast the true want-of-jurisdiction dismissals in Part VIII.*

Kabras Rugby Club v M. & another

[2026] KEHC 7353 (KLR) · High Court (Civil Appeal)

2026

PROCEDURAL FAIRNESS · JOINDER · REMITTAL

Facts. Promotional posters for a rugby match between Kabras Rugby Club and KCB Rugby Club, published on social media around 14 February 2023, featured the image of M. without his consent for commercial marketing purposes. He complained to the ODPC on 11 July 2024; Kabras Rugby Club was subsequently joined to the proceedings, and the ODPC issued a determination against it on 11 October 2024 in Complaint No. 1069 of 2024.

Held. Appeal allowed; the ODPC determination set aside and the complaint remitted for fresh hearing in accordance with the Constitution, the Act and the Regulations. While the joinder of Kabras Rugby Club was itself lawful, the Club was denied procedural fairness after joinder — it was not given a proper opportunity to respond before the determination was made — and the determination could not stand on that ground alone.

Practice Note. *Joining an additional respondent mid-investigation does not dispense with the ODPC's obligation to afford that respondent a fair opportunity to be heard before a determination is made against it; failure to do so is fatal on appeal regardless of the merits.*

Vihiga College of Business & Technical Training v Data Commissioner

[2026] KEHC 8304 (KLR) · High Court at Vihiga, Civil Miscellaneous Application E017 of 2026

Nyakundi, R.N., J. · 15 June 2026

ENFORCEMENT NOTICE · REGISTRATION OBLIGATION · OUT-OF-TIME APPEAL

Facts. The ODPC issued an Enforcement Notice (12 November 2025) requiring the College to register as a Data Controller and/or Data Processor under the Act and the Registration Regulations. The College failed to comply within the prescribed period and, on 2 March 2026, sought to challenge the notice, filing its Notice of Motion for stay on 14 April 2026 without first obtaining leave to appeal out of time.

Held. The Notice of Motion was struck out and costs awarded to the Data Commissioner. The appeal had been filed outside the statutory period, no leave had been obtained to file out of time, there was accordingly no competent appeal before the Court, and the stay application — dependent on a competent underlying appeal — was itself incompetent.

Practice Note. *The statutory appeal timeline under section 64 is strictly enforced; a controller intending to appeal an Enforcement Notice must either file within time or apply for leave to file out of time before doing anything else — a stay application cannot cure a missed deadline.*

Part VIII**Jurisdictional Threshold: Matters Not Reaching the Merits for Want of Jurisdiction or Failure to Exhaust the ODPC Mechanism**

This Part is deliberately isolated from the substantive Parts above. Every entry in it shares one structural feature: the reviewing court — in every instance but one, the High Court; in two instances, the Employment and Labour Relations Court — disposed of the matter on a preliminary or threshold objection without adjudicating whether the Data Protection Act had in fact been violated. The recurring doctrinal position, traceable through this line of authority, is that section 56 of the Act designates the ODPC as the primary forum for a data-protection complaint; that a data subject aggrieved by an ODPC determination has a mandatory statutory appeal under section 64, not an unconstrained constitutional petition or an application for judicial review; and that the exhaustion doctrine will not be displaced merely because a petitioner frames an ordinary data-protection grievance in the language of Articles 28, 31 or 40 of the Constitution. Two decisions reach the opposite conclusion on their particular facts — *M. v Julie Njuhi Muiruri (t/a Human Hair Center)* [2024] KEHC 6970 (KLR) and *K. v Chuka University* [2026] KEHC 3493 (KLR), both reported in Part I — holding that claims sounding in dignity, property or personality rights that go beyond ordinary data misuse survive the exhaustion doctrine under Article 165(3)(b) of the Constitution. Readers assembling a forum-selection or admissibility argument should treat Parts I and VIII together as the authoritative statement of the current, still-developing, jurisprudential position; a small number of entries in this Part carry an express note on incomplete source extraction, and should be verified against the original judgment before being cited.

M. & another v Naivasha County Hotel t/a Sawela Lodges

[2022] KEHC 10975 (KLR) · High Court

2022

EXHAUSTION DOCTRINE · PRELIMINARY OBJECTION UPHELD

Facts. The Petitioners, attendees at a team-building event at Sawela Lodges, alleged the hotel photographed them without consent, published the photographs on social media, and used them for marketing. They approached the High Court directly under the Constitution and the Data Protection Act, without first complaining to the ODPC.

Held. Preliminary objection upheld; petition struck out with costs. The Act establishes a comprehensive statutory framework covering complaints, investigation, enforcement, compensation and appeals; the alleged misuse of photographs was precisely the type of dispute that framework contemplates, and no exceptional circumstances were shown to justify bypassing the ODPC.

AK & another v Joyce Njoki Ngigi t/a Kora Spa

[2023] KEHC 1126 (KLR) · High Court

2023

EXHAUSTION DOCTRINE · MINOR DATA SUBJECT

Facts. A father and his minor son, having attended Kora Spa for barber services, alleged that staff photographed them without disclosing the purpose and later published the images on Facebook and Instagram with promotional captions, in breach of privacy.

Held. Preliminary objection upheld; petition struck out with costs. The complaint fell squarely within the statutory DPA framework; the petitioners had not first exhausted the ODPC complaint mechanism, and the mere invocation of Article 31 did not, without more, establish an exception to exhaustion — notwithstanding that one petitioner was a minor.

K. v Beehive Media Limited; Capwel Industries Limited (Interested Party)*[2023] KEHC 2684 (KLR) · High Court*

2023

EXHAUSTION DOCTRINE · ODPC AS 'FIRST PORT OF CALL'

Facts. The Petitioner alleged his photograph was used, without authorisation, in a widely circulated social-media advertisement for the Interested Party's product, and sought injunctive relief directly from the High Court.

Held. Claims arising from alleged infringement of Article 31(c) and (d) privacy rights should first be dealt with by the ODPC, which the Act designs as the 'first port of call' for such complaints; the Commissioner may determine whether Bill-of-Rights privacy rights have been denied, violated, infringed or threatened, but does not thereby exercise the High Court's exclusive constitutional-interpretation jurisdiction. No exception to exhaustion was demonstrated; judgment directed the dispute into the statutory framework without the Court reaching the image-rights merits.

K. & another v Mobi Changa Limited*[2023] KEHC 25772 (KLR) · High Court*

2023

EXHAUSTION DOCTRINE · HISTORIC PUBLIC FACEBOOK POST

Facts. The Plaintiffs, a husband and wife who are practising advocates, alleged Mobi Changa used their photograph — originally posted years earlier by the husband on his own Facebook page — in commercial advertising for its M-Changa product and on social media, without fresh authorisation.

Held. Suit struck out with costs on the exhaustion issue. The Act's statutory framework, including the ODPC's investigative, enforcement and compensation powers, governs complaints of unauthorised commercial use of a photograph; no exception to exhaustion was demonstrated on the material before the Court, notwithstanding the plaintiffs' own legal qualifications.

Ceres Tech Limited v Commissioner, Office of the Data Protection Commissioner*[2024] KEHC 12833 (KLR) · High Court (Judicial Review)*

2024

FAILURE TO USE THE SECTION 64 APPEAL ROUTE

Facts. Facing complaints of unsolicited direct marketing by telephone and SMS, the Applicant produced evidence of a compliance programme — a privacy policy, a DPIA, a data-protection policy, consumer contracts, an opt-out mechanism and organisational safeguards — and sought to challenge the ODPC's adverse determination by judicial review rather than by the statutory appeal.

Held. Judicial Review Application struck out, costs to the Respondent. The High Court lacked jurisdiction because the Applicant had failed to utilise the appeal expressly provided under section 64 of the Act; a party aggrieved by an ODPC determination must first exhaust that statutory appeal route before any recourse to judicial review.

G. & 2 others v Data Protection Commissioner & 2 others*[2024] KEHC 15107 (KLR) · High Court, Application E202 of 2023 (Judicial Review)*

2 December 2024

JUDICIAL REVIEW FASHIONED AS A CONSTITUTIONAL PETITION · LEAVE REQUIREMENT

Facts. The Applicants sought judicial-review relief against the ODPC without first obtaining leave to file the substantive judicial-review motion, contending that Article 47 of the Constitution and the Fair Administrative Action Act dispensed with the leave requirement, and framing elements of their challenge in constitutional terms.

Held. Application struck out with costs. Article 23(3)(f) of the Constitution should not be read as permitting an application for judicial review to be fashioned as a constitutional petition; leave must still be obtained before

filing a substantive judicial-review motion; and the ODPC's decision was, in any event, subject to the statutory appeal mechanism rather than to judicial review.

N. v Nation Media Group Limited & another

[2024] KEHC 6981 (KLR) · High Court, Civil Case E149 of 2020

12 June 2024

EXHAUSTION DOCTRINE · RETROSPECTIVITY · TRANSITIONAL NON-OPERATION OF THE ACT

Facts. N. sued Nation Media Group and a co-defendant over alleged misuse of her personal data; the defendants raised a preliminary objection grounded in the exhaustion doctrine under section 64. The plaintiff resisted on two grounds: that the Act, not having been fully operational (the Data Commissioner not yet having been appointed) at the material time, could not be given retrospective effect against her; and that not every statutory violation must be raised as a constitutional issue before the High Court, citing *Bernard Murage v Fineserve Africa Limited & 3 others* [2015] eKLR.

Held. The preliminary objection was upheld and the suit struck out with costs to the defendants; section 64 requires that any administrative action under the Act first be filed and determined by the Data Commissioner, with a right of appeal to the High Court only thereafter, and the plaintiff had not adhered to that principle of exhaustion.

Mulla Pride Limited v Office of the Data Protection Commissioner

[2025] KEHC 11287 (KLR) · High Court, Petition E420 of 2023 (Constitutional and Human Rights)

31 July 2025

'PROPERLY BEFORE THE COURT' · PETITION V STATUTORY APPEAL

Facts. A digital-credit provider (trading as KeCredit and FairKash) petitioned the High Court against a penalty proposed by the ODPC under section 63 for alleged non-compliance with the Act. The Respondent argued the Petitioner was required to lodge a section-64 appeal rather than bring a constitutional challenge, squarely raising whether the proceedings were properly before the Court.

Held. Petition dismissed. The Court held the Petitioner had bypassed the mandatory statutory appeal mechanism under section 64 of the Data Protection Act by filing a constitutional petition instead, and that the challenge to the Data Commissioner's penalty notice (issued under section 63 for using personal data obtained from third parties to pressure borrowers into repayment) ought to have proceeded by way of that statutory appeal rather than by invoking constitutional jurisdiction; the petition was accordingly an improper process and unsustainable.

Editorial Note: this entry has been checked against the original judgment on the Kenya Law Reports (kenyalaw.org); the disposition above reflects the Court's actual final orders and this entry is no longer flagged in the Appendix.

S. v Nyati Savings & Credit Co-op Society

[2025] KEHC 11815 (KLR) · High Court, Civil Case E176 of 2024

26 June 2025

EXHAUSTION DOCTRINE · SECTION 56/64/65 · OUTCOME NOT PRESERVED

Facts. The Plaintiff sued over the Defendant's publication of her image on social media and websites without consent, seeking compensation and injunctive relief. The Defendant raised a preliminary objection contending the Data Protection Act's in-built dispute-resolution mechanism — sections 56, 57(5), 64 and 65, read with regulations 3 and 4 of the 2021 Regulations — required exhaustion before the Plaintiff could invoke the Court's jurisdiction.

Held. The extraction preserves the framing of the preliminary objection in detail but not the Court's operative ruling on it; this entry is included for the doctrinal completeness of Part VIII, and its outcome must be confirmed against the original ruling before being relied upon.

Editorial Note: this entry carries a flag for incomplete source extraction — the operative disposition and/or reasoning was not fully preserved in the supplied corpus. It is retained for completeness and doctrinal context and should be verified against the original judgment before citation. See the Appendix, "Editorial Notes on Source Completeness."

N. v Kiambi & another

[2025] KEHC 3793 (KLR) · High Court, Petition E225 of 2023
2025

EXHAUSTION DOCTRINE · EXCEPTIONS ARGUMENT REJECTED

Facts. N. petitioned the High Court against Faith Kiambi and another, contending the petition raised constitutional questions within the Court's exclusive Article 165(3) jurisdiction, and that the exhaustion doctrine is not absolute and admits of exceptions.

Held. The petition was struck out. Although counsel correctly stated that the exhaustion doctrine is not absolute, the Petitioner did not establish that the case fell within a recognised exception, and the Court accordingly declined to depart from the ordinary requirement to proceed first before the ODPC.

Republic v Data Protection Commissioner; Hotel Waterbuck Limited (Ex parte Applicant); S. (Interested Party)

[2025] KEHC 5801 (KLR) · High Court (Judicial Review)
2025

WANT OF JURISDICTION · FAILURE TO APPEAL UNDER SECTION 64

Facts. The Ex parte Applicant challenged, by judicial review, a Data Commissioner determination of 18 June 2024 that had found in favour of the Interested Party — who had complained that the hotel used his image for commercial purposes on its website without consent — and made a compensation award.

Held. Application struck out with costs to the Respondent and the Interested Party for want of jurisdiction, the Court following its own recent authority in Ceres Tech Limited v Commissioner, ODPC [2024] KEHC 12833 (KLR) that a party aggrieved by an ODPC determination must proceed by the section-64 statutory appeal, not by judicial review; a court's jurisdiction flows only from the Constitution or legislation, and none had been shown to support the judicial-review route taken.

Talanta Institute v Office of the Data Protection Commissioner; M. (Interested Party)

[2025] KEHC 8530 (KLR) · High Court, Judicial Review E165 of 2024
16 June 2025

JURISDICTION AS A 'PURE QUESTION OF LAW' · ADEQUATE ALTERNATIVE REMEDY

Facts. The Applicant sought certiorari and prohibition against an ODPC determination of 30 June 2024 that had held it liable for unauthorised commercial use of the Interested Party's image and ordered compensation of KES 750,000. A preliminary objection on jurisdiction was raised, the Respondents arguing — by reference to the adequate-alternative-remedy standard articulated in Jawara v The Gambia and the Constitutional-Avoidance Doctrine — that the question of jurisdiction is a pure question of law to be resolved as a threshold matter.

Held. The extraction preserves the parties' submissions on the jurisdictional preliminary objection in detail but not the Court's concluding order; the entry is retained for its doctrinal value on the adequate-alternative-remedy test and should be verified against the original ruling for its disposition.

Editorial Note: this entry carries a flag for incomplete source extraction — the operative disposition and/or reasoning was not fully preserved in the supplied corpus. It is retained for completeness and doctrinal context and should be verified against the original judgment before citation. See the Appendix, "Editorial Notes on Source Completeness."

B. & 3 others v Alliance Leasing Limited

[2026] KEELRC 979 (KLR) · Employment and Labour Relations Court
2026

EXHAUSTION DOCTRINE (ELRC) · POST-EMPLOYMENT PUBLICATION · ABUSE OF PROCESS

Facts. Former employees of the Respondent petitioned the ELRC after the Respondent published a notice in the Daily Nation containing their photographs and the first petitioner's mobile phone number, stating they were no longer employees of the company.

Held. Preliminary objection upheld and the petition struck out; the third petitioner's claim was struck out separately as an abuse of process, with no order as to costs. The Court held that a dispute arising from a former employment relationship may nonetheless remain within the Data Protection Act's own statutory dispute-resolution framework rather than proceeding directly as a constitutional petition before the ELRC.

T. v Murage t/a Murage Juma and Company Advocates

[2026] KEHC 3998 (KLR) · High Court, Petition E129 of 2025

2026

CONSTITUTIONAL LITIGATION AS INDIRECT APPEAL · ODPC AS SPECIALIST REGULATOR

Facts. T., a defendant in a separate Malindi ELC matter, had filed a replying affidavit apparently sworn in Nairobi before a Commissioner for Oaths; counsel for the opposing parties in the ELC matter wrote to the Director-General of Immigration seeking his travel records to test the affidavit's veracity. T. petitioned the High Court, alleging the retrieval of his travel information by the advocate violated the Data Protection Act.

Held. Preliminary objection upheld; the constitutional petition struck out, with costs to the respondent advocate. The Court never determined whether the travel information had in fact been lawfully obtained or whether the Act had been violated on the merits: constitutional litigation cannot be used as an indirect appeal against evidentiary rulings properly made in another court, and Parliament deliberately established the ODPC as the specialist regulator for determining Data Protection Act complaints in the first instance.

O. v University of Nairobi & 8 others

[2026] KEHC 4814 (KLR) · High Court of Kenya at Nairobi (Milimani Law Courts), Petition E325 of 2023

Mugambi, J. · 2026

EMPLOYEE INVESTIGATION · DEVICE SEARCH · ODPC AS PRIMARY FORUM

Facts. O., employed by the University of Nairobi since 2004 (latterly as an Audio-Visual Officer), was investigated in January 2023 following whistleblower allegations of examination malpractice; the investigation involved accessing information on his mobile phone — WhatsApp messages, emails, photographs, text messages and M-Pesa records — without his consent or a warrant, and the material obtained was used in disciplinary proceedings that led to termination of his employment. He petitioned the High Court alleging violation of his Article 31 privacy rights, seeking declarations, damages and restraining orders.

Held. Petition dismissed, costs awarded to the Respondents. Invocation of constitutional privacy rights does not eliminate the statutory complaint process under the Act; the ODPC is the primary forum for complaints of this kind. The Court expressly did not decide whether the University's access to the phone was itself unlawful — the judgment is a procedural gatekeeping ruling on where such a complaint must first be brought, not a substantive privacy determination.

Practice Note. For employers: this case is best read as a warning of what the ODPC route may still reveal on the merits, not an endorsement of the search itself; document lawful basis, proportionality and scope before accessing an employee's personal device in any investigation.

Appendix: Editorial Notes on Source Completeness

The source corpus supplied for this digest combined clean case summaries with direct PDF and OCR extractions of primary judgments; the latter category was, in a minority of instances, affected by extraction artefacts (misordered text, quoted authorities interleaved with the court's own reasoning, or an operative order not separately captured). Consistent with the governing rule that this digest never supplies a holding, fact or citation from outside the supplied material, the following entries are flagged rather than silently completed. Each remains in its substantive Part for doctrinal context; this Appendix simply collects the flags in one place for ease of quality-control review.

St Joseph Health Care v M. [2026] KEHC 4643 (KLR) (Part I): source extraction did not preserve a complete, unambiguous statement of the court's operative disposition and/or reasoning; the entry above records what is reliably recoverable and should be checked against the original judgment before citation.

Metropolis Star Lab Kenya Ltd v K. & another [2025] KEHC 8211 (KLR) (Part I): this entry has since been checked against the original judgment on the Kenya Law Reports and the disposition has been completed above; no longer flagged.

K. v Credit Bank PLC [2024] KEELRC 2142 (KLR) (Part III): this entry has since been checked against the original judgment on the Kenya Law Reports and the disposition has been completed above; no longer flagged.

TRV Towers Limited v Bank of India [2024] KEHC 12927 (KLR) (Part III): this entry has since been checked against the original judgment on the Kenya Law Reports and the disposition has been completed above; no longer flagged.

S. v Central Bank of Kenya [2025] KEELRC 2584 (KLR) (Part III): this entry has since been checked against the original judgment on the Kenya Law Reports and the disposition has been completed above; no longer flagged.

Premier Credit Limited v K. [2025] KEHC 9254 (KLR) (Part III): source extraction did not preserve a complete, unambiguous statement of the court's operative disposition and/or reasoning; the entry above records what is reliably recoverable and should be checked against the original judgment before citation.

Kenya Union of Journalists v Kenya Broadcasting Corporation [2025] KEHC 17216 (KLR) (Part V): this entry has since been checked against the original judgment on the Kenya Law Reports and the disposition has been completed above; no longer flagged.

W. & another v Whitepath Company Limited [2025] KEHC 16419 (KLR) (Part VII): source extraction did not preserve a complete, unambiguous statement of the court's operative disposition and/or reasoning; the entry above records what is reliably recoverable and should be checked against the original judgment before citation.

N. v Office of the Data Protection Commissioner & 2 others; Office of the Attorney General & 3 others (Interested Parties) [2025] KEELRC 822 (KLR) (Part VII): source extraction did not preserve a complete, unambiguous statement of the court's operative disposition and/or reasoning; the entry above records what is reliably recoverable and should be checked against the original judgment before citation.

Republic v Cabinet Secretary, Ministry of Transport, Infrastructure, Housing, Urban Development and Public Works & 2 others; B. (Ex parte Applicant) [2023] KEHC 23661 (KLR) (Part VII): source extraction did not preserve a complete, unambiguous statement of the court's operative disposition and/or reasoning; the entry above records what is reliably recoverable and should be checked against the original judgment before citation.

Mulla Pride Limited v Office of the Data Protection Commissioner [2025] KEHC 11287 (KLR) (Part VIII): this entry has since been checked against the original judgment on the Kenya Law Reports and the disposition has been completed above; no longer flagged.

S. v Nyati Savings & Credit Co-op Society [2025] KEHC 11815 (KLR) (Part VIII): source extraction did not preserve a complete, unambiguous statement of the court's operative disposition and/or reasoning; the entry above records what is reliably recoverable and should be checked against the original judgment before citation.

Talanta Institute v Office of the Data Protection Commissioner; M. (Interested Party) [2025] KEHC 8530 (KLR) (Part VIII): source extraction did not preserve a complete, unambiguous statement of the court's operative disposition and/or reasoning; the entry above records what is reliably recoverable and should be checked against the original judgment before citation.

Editorial Note on Scope and Reliance

This digest is a professional research and reference tool. It is not, and does not purport to be, a substitute for the original judgments, rulings and determinations it summarises, nor for independent legal advice on any specific matter. Citations, holdings and quantum figures should be verified against the primary source — the Kenya Law Reports (KLR) neutral citation, the ODPC's own determination, or the certified court record — before being relied upon in litigation, regulatory submission, board advice or any other context where accuracy is material. Entries flagged in the Appendix carry a heightened caution in this respect.

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